



CHAPTER cxxxi.

An Act for incorporating and conferring powers upon the Hitchin Gas Company Limited and for other purposes. A.D. 1905.
[4th August 1905.]

WHEREAS in the year one thousand eight hundred and thirty-four certain persons formed themselves by a deed of settlement into a company under the name of the Hitchin Gas Company (hereinafter referred to as "the limited company") for the term of sixty years which term was extended by special resolution pursuant to clause 30 of the said deed of settlement for a further period of sixty years which will expire on the twenty-fifth day of October one thousand nine hundred and fifty-four :

And whereas the purpose for which the said company was formed was to supply the streets of the town of Hitchin and the private dwellings and public and other buildings in the same town and other places adjoining or near thereto with gas and generally to carry on the business usually carried on by gas companies and the said company was duly registered on the tenth day of October one thousand eight hundred and seventy-three pursuant to the Joint Stock Companies Acts :

And whereas the present capital of the limited company consists of seven thousand pounds divided into two hundred and seventy-two shares of twenty pounds each twenty-five shares of ten pounds each twenty-nine shares of eight pounds each two hundred shares of five pounds each and thirty-nine shares of two pounds each all of which are fully paid up and the company have borrowed the sum of fourteen thousand pounds :

And whereas the limited company have from time to time purchased certain pieces of land and are now the owners in fee

A.D. 1905. — and in occupation of the piece of land numbered 1 and are the leaseholders of the whole and in occupation of part of the piece of land numbered 2 in the schedule to this Act:

And whereas the limited company have erected gasworks on the said piece of land numbered 1 in the said schedule and have from time to time improved and enlarged their works and are now supplying gas within and near the said town and the urban district of Hitchin and upon the said piece of land numbered 2 in the said schedule are a governor station a gas-holder station the secretary's office and the board room of the limited company and a cottage in the occupation of Charles Worley but no gas is or is intended to be manufactured on the said piece of land numbered 2 in the said schedule:

And whereas the demand for gas in and near to the district supplied by the limited company has increased and is increasing and it is expedient that the limited company should be dissolved and the members thereof incorporated with the powers hereinafter conferred and that the company so re-incorporated be authorised to extend and improve the gasworks and that additional capital be provided for such extension and improvement:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title.

1. This Act may be cited as the Hitchin and District Gas Act 1905.

Incorporation of general Acts.

2. The Companies Clauses Consolidation Act 1845 (except the provisions thereof with respect to the conversion of borrowed money into capital) Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 the Lands Clauses Acts (except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking) the Gasworks Clauses Act 1847 (except sections 31 to 34) and the Gasworks Clauses Act 1871 are subject to the provisions of this Act incorporated with and form part of this Act:

Provided that section 13 of the Gasworks Clauses Act 1847 shall be read as if the words "or any premises" were inserted after the words "private building" and provided that section 35 of the said Act shall be read as if the words from "in case the whole" down to the words "have been paid" were omitted therefrom and as though the expression "the prescribed rate" included the standard rates of dividend or such rates as reduced or increased in accordance with the provisions of this Act together with any sum which under the provisions of this Act may be carried to the insurance fund.

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3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act—

Interpretation.

"The limited company" means the Hitchin Gas Company Limited;

"The Company" means the Company incorporated by this Act;

"The gasworks" "the works" and "the undertaking" shall respectively mean and include the gasworks and works connected therewith by this Act vested in or authorised to be continued and maintained by the Company and any improvements extensions or enlargements thereof which they may construct under the powers of this Act and the lands buildings estate right title property privileges effects and undertaking of the Company and every part thereof respectively.

4. The limits of this Act for the supply of gas shall be the urban district of Hitchin and such part or parts of the parishes of Ippollitts Great Wymondley Little Wymondley Walsworth Ickleford Pirton Offley Preston and Letchworth in the rural district of Hitchin in the county of Hertford as is or are comprised within a circle having a radius of two miles from the centre of the Market Place in the town of Hitchin except so much of the aforesaid area as forms part of the estate of the First Garden City Company Limited.

Limits of supply.

5. From and after the passing of this Act the limited company shall be dissolved and the several persons who immediately before the passing of this Act were members of that company and all other persons who have subscribed to or who

Incorporation of Company.

A.D. 1905. — shall hereafter become proprietors in the undertaking and their executors administrators successors and assigns respectively shall be and they are hereby united into a Company for the purposes hereinafter mentioned and shall be incorporated by the name of "The Hitchin and District Gas Company" and by that name shall be a body corporate with perpetual succession and a common seal and with power to purchase take hold and dispose of lands and other property for the purposes of this Act.

General purposes of Company.

6. The Company shall be established for the purposes of acquiring maintaining altering improving extending and enlarging the gasworks of the limited company and of manufacturing and storing gas and of supplying gas for lighting heating motive power warming ventilating and any other purposes for which gas is or may be used within the limits of this Act and for converting or utilising and distributing materials used in and about the manufacture of gas and of residual products resulting from such manufacture and for dealing in selling and disposing of gas coke lime tar chemicals and residual and manufactured products and any other material or substance used in or arising or to be made and obtained from or in the manufacture of gas or by the combination of any of the above-mentioned matters either with each other or with other substances and for carrying on the business usually carried on by gas companies.

Present property of limited company vested in Company incorporated by this Act.

7. Subject to the provisions of this Act all the lands gasworks erections buildings rights and easements which immediately before the passing of this Act were vested in the limited company or any person in trust for them or to which the limited company were in anywise entitled and all mains and pipes plant plugs lamps irons retorts gauges meters gas stoves lamp-posts syphons apparatus stock effects matters and things which may have been by them purchased provided laid down erected or placed in any place or house within the limits of this Act and which immediately before the passing of this Act were the property of the limited company and all moneys securities credits effects and other property whatsoever which immediately before the passing of this Act belonged to the limited company or to any trustee on their behalf and the benefit of all contracts and engagements entered into by or on behalf of the limited company and immediately before the passing of this Act in force shall be and the same are hereby vested in the Company to the same extent and for the same estate and interest as the same were previously to the passing of this Act vested in the limited company or any

trustee on their behalf and may according to the provisions of this Act be held and enjoyed sued for and recovered maintained altered discontinued removed dealt with and disposed of by the Company as they think fit. A.D. 1905.

8. Subject to the provisions of this Act the deed of settlement constituting the limited company dated the first day of December one thousand eight hundred and thirty-four shall as to any prospective operation thereof be wholly void and the Company and the holders of shares and stock therein shall be exempted from all the provisions restrictions and requirements of any Act which applied to the limited company and the members thereof as such but nothing in this Act contained shall release or discharge any person from any liability or obligation in respect of any breach of the provisions of the said deed of settlement incurred before the passing of this Act but such liability or obligation in respect of any such breach shall continue and save as in this Act otherwise provided may be enforced by or on behalf of the Company as nearly as may be in like manner as the same might have been enforced by or on behalf of the limited company if this Act had not been passed. Deed of settlement of limited company to be void without prejudice to remedies for antecedent breaches thereof.

9. Except as is by this Act otherwise expressly provided everything before the passing of this Act done or suffered by or with reference to the limited company or the members thereof as such shall be as valid as if the Company had not been incorporated and the said deed of settlement had not been avoided by this Act and such incorporation and avoidance and this Act respectively shall accordingly be subject and without prejudice to everything so done or suffered and to all rights liabilities claims and demands both present and future which if the Company had not been incorporated and the said deed of settlement were not avoided by this Act and this Act had not been passed would be incident to or consequent on any and every thing so done or suffered and with respect to all such rights liabilities claims and demands the Company and the holders of shares and stock therein and the property of the Company shall to all intents and purposes represent the limited company and the members thereof as such and the property of the limited company as the case may be and the generality of this enactment shall not be restricted by any of the other sections and provisions of this Act. Nothing to affect previous rights and liabilities.

10. Except as is by this Act otherwise specially provided all purchases sales conveyances grants assurances deeds contracts bonds and agreements entered into or made before the passing of Contracts prior to Act to be binding.

A.D. 1905. — this Act by to or with the limited company or any trustees or persons acting on behalf of the limited company or by to or with any other person to whose rights and liabilities they have succeeded and now in force shall be as binding and of as full force and effect in every respect against or in favour of the Company and may be enforced as fully and effectually as if instead of the limited company or any trustees or persons acting on behalf of the limited company the Company had been a party thereto.

Actions &c.
not to abate.

11. Nothing in this Act contained shall release discharge or suspend any action or other proceeding which was pending by or against the limited company or any member thereof in relation to the affairs of the limited company or to which the limited company or any member thereof in relation to such affairs were parties immediately before the passing of this Act but such action or other proceeding may be maintained prosecuted or continued by or in favour of or against the Company (as the case may be) in the same manner and as effectually and advantageously as the same might have been maintained prosecuted or continued by or in favour of or against the limited company or any member thereof if this Act had not been passed the Company and the holders of shares and stock therein being in reference to the matters aforesaid in all respects substituted for the limited company and its members respectively.

Trustees of
limited com-
pany to be
indemnified.

12. Every trustee or other person in whom or in whose name any lands works buildings easements rights property or effects belonging to the limited company were vested immediately before the passing of this Act and who (being authorised so to do) entered into any bond covenant contract or engagement in respect of the same or otherwise on behalf of the limited company shall be indemnified out of the funds and property of the Company against all liability (including costs charges and expenses) which he may sustain or incur or be put to by reason of his having entered into such bond covenant contract or engagement.

Company to
satisfy lia-
bilities of
limited com-
pany.

13. From and after the passing of this Act the Company shall in all respects be subject to and shall discharge all obligations and liabilities to which the limited company immediately before the passing of this Act were subject and shall indemnify the members directors officers and servants of the limited company or their respective representatives from all such obligations and liabilities and from all expenses and costs in that behalf.

14. All gas rents and sums of money which immediately before the passing of this Act were due or accruing to the limited company shall be payable to and may be collected and recovered by the Company in like manner as if they had become payable for the like matters supplied or done under this Act.

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Recovery of
gas rents &c.

15. All persons who immediately before the passing of this Act owed any money to the limited company or to any person on their behalf shall pay the same with all interest (if any) due or accruing upon the same to the Company and all debts and moneys which immediately before the passing of this Act were due or recoverable from the limited company or for the payment of which the limited company were or but for this Act would be liable shall be paid with all interest (if any) due or accruing upon the same by or be recoverable from the Company.

As to pay-
ment of debts
owing before
passing of
Act.

16. Notwithstanding the avoidance of the said deed of settlement all certificates (until cancelled under the powers of this Act) sales transfers and dispositions heretofore made or executed under it for and with respect to any shares in the limited company shall remain in full force and continue and be available in all respects as if it had not been avoided.

Certificates
&c. to remain
in force.

17. All documents books and writings which if the said dissolution and avoidance had not taken place would have been receivable in evidence shall be admitted as evidence in all courts and elsewhere notwithstanding such dissolution and avoidance.

Books &c.
continued
evidence.

18. All officers and servants of the limited company who were in office immediately before the passing of this Act shall hold and enjoy their respective offices and employments together with the salaries and emoluments thereunto annexed until they shall resign the same or be removed therefrom by the Company and shall be subject and liable to the like conditions obligations pains and penalties and to the like powers of removal and to the like rules restrictions and regulations in all respects whatsoever as if they had been appointed under this Act.

Officers to
continue until
removed.

19. The books kept by the limited company for entering the names and designations of the members thereof shall continue to be kept for similar purposes by the Company and be taken and considered as the register of holders of stock required to be kept by the Companies Clauses Consolidation Act 1845 until a new register is provided by the Company.

Present re-
gisters of
members to
be continued.

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Capital and
issue to share-
holders of
limited com-
pany.

20. The capital of the Company shall consist of fifty thousand pounds consolidated ordinary stock bearing a standard rate of dividend of five per centum per annum. Of this amount fourteen thousand pounds consolidated ordinary stock shall be deemed to represent and shall be called "the original capital" and thirty-six thousand pounds consolidated ordinary stock shall be called "the additional capital" and shall be raised in manner hereinafter mentioned. The stock representing the original capital shall be deemed to be fully paid and by virtue of this Act and subject as hereinafter provided shall be vested in the persons who immediately before the passing of this Act shall be the registered shareholders in the capital of the limited company and such consolidated ordinary stock shall be vested in such shareholders of the limited company according to their respective holdings in the following proportions in substitution for the shares held by them (namely):—

For every twenty pound share in the capital of the limited company forty pounds' nominal value consolidated ordinary stock :

For every ten pound share in the capital of the limited company twenty pounds' nominal value consolidated ordinary stock :

For every eight pound share in the capital of the limited company sixteen pounds' nominal value consolidated ordinary stock :

For every five pound share in the capital of the limited company ten pounds' nominal value consolidated ordinary stock :

For every two pound share in the capital of the limited company four pounds' nominal value consolidated ordinary stock :

And such consolidated ordinary stock shall be held in the same rights on the same trusts and subject to the same powers provisions charges and liabilities (except so far as the same may be altered or varied by this Act) as those in upon or to which the shares in the capital of the limited company for which the consolidated ordinary stock is substituted were held or were subject to immediately before the passing of this Act and shall be dealt with applied and disposed of accordingly and so as to give effect to and not to revoke any deed will or other instrument disposing of or affecting any such shares and trustees

executors or administrators or persons under disability may accept consolidated ordinary stock in substitution for the shares in the capital of the limited company held by them and may subject to the provisions of this Act retain dispose of or otherwise deal with the same as fully and freely in all respects as they might have retained disposed or otherwise dealt with such shares in the capital of the limited company.

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21. The Company shall call in the certificates of shares in the limited company for which consolidated ordinary stock is substituted by virtue of this Act and shall issue in exchange for those certificates to the respective proprietors thereof free of charge certificates of consolidated ordinary stock of the respective amounts to which those proprietors are by this Act respectively entitled but no shareholder of the limited company shall be entitled to a new certificate until he shall have delivered up to the Company to be cancelled the existing certificate for which such certificate is to be substituted or shall have proved to the reasonable satisfaction of the directors of the Company the loss or destruction thereof Provided always that until the issue of such new certificates the existing certificates shall (according to the amounts of consolidated ordinary stock to be substituted by virtue of this Act for the shares in the capital of the limited company which they respectively represent) have and possess the same rights and advantages as if they were certificates for those respective amounts of consolidated ordinary stock created by virtue of this Act but if any holder of shares in the capital of the limited company neglect or omit to send or deliver to the Company his existing certificate or certificates for the period of one year after notice in writing sent by post to the address appearing in the shareholders' address book of the limited company the Company may suspend the payment of any dividend declared or made payable upon or in respect of the consolidated ordinary stock so held by him until such existing certificate or certificates is or are sent or delivered to the Company or is or are proved to the reasonable satisfaction of the directors of the Company to have been lost or destroyed.

Certificates of shares to be called in and others issued.

22. The several persons whose names at the date of the passing of this Act appear in the register of members of the limited company to be the holders of shares in the capital of that company shall be considered to be holders of shares in the capital of that company for the purpose of the vesting in and issue to them of the consolidated ordinary stock in the capital

Register of limited company to be evidence.

A.D.1905. of the Company in accordance with the provisions of this Act and the secretary of the limited company shall on or before the date of the passing of this Act deliver to the secretary of the Company at the principal office of the Company a correct copy of the said register and on and after that date the register of transfers of shares of the limited company shall be closed and no transfer of any shares made on or after that date shall as between the Company and the party claiming thereunder be of any effect and the issue by the Company of certificates of consolidated ordinary stock of the Company as aforesaid to the persons whose names appear by the copy of such register so furnished to them to be the registered holders of shares in the capital of the limited company shall be a sufficient discharge to the Company.

Trustees
executors &c.
can hold con-
solidated or-
dinary stock.

23. Trustees executors administrators and assigns and all other persons legally holding in any representative or fiduciary capacity shares in the capital of the limited company for which consolidated ordinary stock of the Company is by this Act substituted may hold the stock issued in substitution for such shares under the authority of this Act and are hereby indemnified for all acts bonâ fide done by them in pursuance of the provisions of this Act.

Transfers
of shares
although by
present name
to be valid.

24. All transfers or other dispositions of shares in the capital of the limited company existing up to the date of the passing of this Act shall notwithstanding this Act be valid and have due effect given to them respectively as transfers of the respective amounts of consolidated ordinary stock which the shares thereby expressed to be transferred or disposed of represent or which are or may be substituted for the same under the provisions of this Act although the instrument transferring or disposing thereof shall describe the same by the name or denomination which the shares transferred or disposed of had before such substitution and the bequest of or any covenant or provision of any deed or agreement relating to any such shares shall be held to apply to a nominal amount of consolidated ordinary stock equal to that for which such shares shall have been substituted under the provisions of this Act.

Transfer of
stock.

25. The consolidated ordinary stock of the Company shall be transferable in sums of five pounds or multiples of five pounds and sections 18 19 and 20 of the Companies Clauses Consolidation Act 1845 shall be deemed and construed to include

and apply to such stock and the interest thereon as if such stock and interest had been expressly mentioned therein and no stockholder shall be entitled to hold less than five pounds nominal value of stock. A.D. 1905.

26. The Company may from time to time raise additional capital not exceeding in the whole thirty-six thousand pounds by the creation and issue of new consolidated ordinary stock but no such stock shall vest in the person accepting the same unless and until the full price of such stock including any premium obtained upon the sale thereof shall have been paid in respect thereof. Provided that the Company shall not create and issue under the powers of this Act any greater nominal amount of additional capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of thirty-six thousand pounds. Power to
Company to
raise addi-
tional capital.

27. If the clear profits of the undertaking of the Company in any year amount to a larger sum than is sufficient to pay the dividend on the consolidated ordinary capital of the Company at the authorised rate the excess beyond the sum necessary for that purpose may from time to time to the extent of one per centum per annum upon the paid-up capital of the Company be invested in securities in which trustees are for the time being authorised to invest money and the dividends and interest arising from such securities shall also be invested in the same or like securities in order that the same may accumulate at compound interest until the fund so formed amounts to a sum equal to one-twentieth of the paid-up capital of the Company which sum shall form an insurance fund to meet any extraordinary claim demand or charge which may at any time arise against or fall upon the Company from accident strikes or other circumstances which in the opinion of a court of summary jurisdiction due care and management could not have prevented and if such fund be at any time reduced it may thereafter be again made up to the said sum and so from time to time as often as such reduction shall happen. Provided that when and so often as the said fund shall reach one-twentieth part of the paid-up capital the interest thereon shall be carried to the credit of the fund available for dividend. Provided also that resort may from time to time be had to the insurance fund to meet any extraordinary claim demand or charge as aforesaid although such fund may not at the time have reached or may have been reduced below the full amount of one-twentieth as aforesaid. If profits ex-
ceed amount
limited excess
may be in-
vested and
form an in-
surance fund.

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Application
of excess of
profits over
authorised
rate of divi-
dend.

28. If the clear profits of the undertaking of the Company in any year amount to a larger sum than is sufficient to pay the authorised rate of dividend on the consolidated ordinary stock of the Company the excess or such portion of it as is not carried to the insurance fund shall be carried to the credit of the divisible profits of the undertaking for the next following year.

Power to
create a re-
serve fund
out of divi-
dends in ex-
cess of autho-
rised rate of
dividend and
application
thereof.

29. Where in any year the dividends on the consolidated ordinary stock of the Company shall exceed the standard rate by reason of the price charged by the Company for gas in such year being below the standard price then out of the amount of the divisible profits of the Company applicable to the payment of such excess of dividend the Company may in such year set apart such sum as they shall think fit and all sums (if any) so set apart by the Company and any reserve or other fund of the Company existing at the passing of this Act may be invested in Government or other securities and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividend in any year in which the clear profits of the Company shall be insufficient to enable the Company in such year to pay the dividend at the authorised rate on the consolidated ordinary stock of the Company and save as is in this Act provided no sum shall in any year be carried by the Company to any reserve fund.

Stock in
additional
capital to be
offered by
auction or
tender.

30. Notwithstanding anything in this Act contained the Company shall when any stock in the additional capital created under the powers of this Act is to be issued and before offering the same to the holder of any stock of the Company and whether the consolidated ordinary stock of the Company is at a premium or not offer the same for sale by public auction or by tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of stock and that the reserved price put upon such stock shall not be less than the nominal amount thereof and notice of the amount of such reserved price shall be sent by the Company in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner

And provided that no priority of tender shall be allowed to any holder of stock in the Company except that if any bid or offer by tender of any holder or holders of stock in the Company be the same in amount as any bid or offer made by any other person the bid or offer of such holder or holders of stock shall be accepted in preference. A.D. 1905.
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31. It shall be one of the conditions of any sale of stock in the additional capital to be raised under this Act that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Company within three months after such sale. Purchase money of capital sold to be paid within three months.

32. The intention to sell any such stock by auction or by tender shall be communicated in writing to the clerk of every district council whose district or any part of whose district is within the limits of the Company for the supply of gas and to the secretary of the committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders (as the case may be) and notice of such intention shall be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of this Act. Notice to be given as to sale of stock by auction or tender.

33. When any stock in the additional capital created under the powers of this Act have been offered for sale by auction or tender and not sold the same shall be offered at the reserved price put upon the same respectively for the purpose of sale by auction or tender to the holders of consolidated ordinary stock of the Company in manner provided by the Companies Clauses Act 1863 Provided always that any stock so offered and not accepted within the time prescribed by the said Act shall again be offered for sale by public auction or by tender in the manner and subject to the provisions of this Act with respect to the sale of stock portion of the additional capital created under the powers of this Act and the reserve put upon such stock may upon such second auction or tender if the directors of the Company think fit be less than the nominal amount thereof and any stock not then sold shall be again offered to the holders of consolidated ordinary stock in the capital of the Company at the last-mentioned reserved price and so from time to time until the whole of such stock is sold. Stock not sold by auction or tender to be offered to stock-holders.

34. Any sum of money which shall arise from the issue of any such stock in the additional capital by way of premium after deducting therefrom the expenses of and incident to such Application of premium arising on issue of stock.

A.D. 1905. — issue shall not be considered as profits of the Company but shall be expended in extending or improving the works of the Company or in paying off money borrowed or owing on mortgage or debenture by the Company and shall not be considered as part of the capital of the Company entitled to dividend. Provided that in any case where a power to raise money by borrowing or to create an insurance fund is made proportionate to the paid-up capital the premium received from the sale of stock by auction or tender as hereinbefore provided shall for such purpose be reckoned as part of the paid-up capital.

Power to borrow in respect of capital.

35. The Company may at any time after the passing of this Act borrow on mortgage of the undertaking such sum or sums (including the sum of fourteen thousand pounds already borrowed by the limited company on debentures) as may be equal to one-third part of the original capital existing at the passing of this Act and one-third part of the amount at the time actually raised of the additional capital by this Act authorised to be raised but no part of any such sum or sums shall be borrowed until the whole of the capital or stock at the time issued together with the premium (if any) realised on the sale thereof shall have been fully paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 (before he so certifies) that such stock and premium (if any) have been issued and fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Priority of existing debentures.

36. All debentures granted or issued by the limited company and subsisting at the passing of this Act shall during the continuance of such debentures rank *pari passu* both as to payment of principal and interest with any mortgage and have priority over all debenture stock granted or created and issued by virtue of this Act.

For appointment of a receiver.

37. The mortgagees or debenture holders of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages or debentures by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees or debenture holders by whom the application for a receiver is made shall not be less than one

tenth of the aggregate amount for the time being owing by the Company on mortgage and debenture. A.D. 1905.

38. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time after the passing of this Act created and issued or granted by the Company under this Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock or mortgages were authorised) and shall subject as mentioned in the section of this Act whereof the marginal note is "Priority of existing debentures" have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock. Debenture stock.

39. The provisions of this Act with respect to disposing of stock by auction or tender shall apply *mutatis mutandis* not only to the additional ordinary capital of the Company but also to any mortgages or debenture stock to be created by the Company under this Act. Debenture stock to be sold by auction or tender.

40. All moneys raised on mortgage by the Company under this Act and the interest due thereon and the interest due on debenture stock created and issued under this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of debts incurred or engagements entered into by the Company after the passing of this Act but this priority shall not affect any claim against the Company or their property in respect of any rent charge to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease to be granted or made to the Company by any person in pursuance of any Act relating to the Company which is entitled to rank in priority to or *pari passu* with the interest or dividend on the mortgages or debenture stock. Priority of mortgages and debenture stock over other debts &c.

41. Subject to the provisions of this Act all moneys raised under this Act whether by stock debenture stock or mortgages shall be applied only for the purposes of this Act and for the general purposes of the Company being in all cases purposes to which capital is properly applicable. Application of moneys.

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First ordinary meeting.

42. The first ordinary meeting of the Company shall be held within six months after the passing of this Act.

Number of directors.

43. The number of directors shall be nine but the Company may vary the number provided that the number be not at any time more than nine nor less than five.

Qualification of directors.

44. The qualification of a director shall be the possession in his own right of not less than two hundred pounds of consolidated ordinary stock.

Quorum of directors.

45. The quorum of a meeting of directors shall be five but in the event of the number of directors being reduced to seven the quorum shall be three.

First directors.
Election of directors.

46. William Hill Theodore Ransom Frederick Ashfield Wright George Halsey Francis Ransom Francis Shillitoe William Lines Hall and William Scymour and one other person who shall be nominated by them or the majority of them shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the passing of this Act At that meeting the shareholders present in person or by proxy may either continue in office the directors appointed by this Act or any of them or may elect a new body of directors or directors to supply the place of those not continued in office the directors appointed by this Act being (if they continue qualified) eligible for re-election and at the first ordinary meeting to be held in every year after the first ordinary meeting the shareholders present in person or by proxy shall (subject to the power hereinbefore contained for varying the number of directors) elect persons to supply the places of the directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are elected in their stead in manner provided by the same Act.

Contracts not to disqualify for office of director.

47. Any contract to be made under this Act with any corporation or public body shall not disqualify any of the members of such corporation or public body for the office of director of the Company and no director or shareholder of the Company shall be disqualified for the office of director of the Company by reason of any contract between him and the Company for any loan of money to the Company but no director of the Company being a member of any such corporation or public body shall

vote upon any question with reference to any contract with such corporation or public body. A.D. 1905.

48. Subject to the provisions of this Act the Company may continue maintain alter improve enlarge extend and renew or discontinue the gas and other works of the limited company upon the lands described in the schedule to this Act and may erect make and maintain alter improve enlarge extend and renew or discontinue works for the manufacture of gas and utilise and distribute materials used in and about the manufacture of gas and of residual products resulting from such manufacture and upon those lands they may accordingly manufacture gas and utilise and distribute such materials and residual products as aforesaid and may also on those lands store gas and the Company may also from time to time provide lay down maintain alter improve enlarge extend and renew or discontinue drains sewers mains pipes meters lamps lamp-posts burners stop-cocks machinery and other works and apparatus and conveniences and may do all such other acts as they may think proper for making storing and supplying gas within the limits of this Act and may subject to the provisions of this Act supply gas accordingly and may deal in and sell and dispose of coke tar and residual products and any other material or substance used in or arising or to be made and obtained from or in the manufacture of gas and carry on the business usually carried on by gas companies or by companies or persons dealing in any of the matters and things aforesaid.

Powers as to maintenance and construction of gas-works.

49. The Company may for the purposes of their undertaking purchase take and hold (by agreement but not otherwise) any lands and hereditaments not exceeding in the whole five acres which the Company may require for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands described in the schedule to this Act.

Power to purchase lands by agreement.

50. The Company may purchase supply sell let for hire use and otherwise deal in fit up fix alter remove and refix but shall not manufacture meters engines motors stoves ranges pipes fittings and other apparatus (all of which are in this section included in the expression "apparatus") and appliances for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may

Power to supply gas fittings &c. for heating and other purposes and not to be subject to distress.

A.D. 1905. — provide all materials and do all work necessary or proper in that behalf and may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon between the Company and the persons to or for whom the same are sold supplied let fixed up altered removed refixed or done.

Apparatus let for hire under the provisions of this section shall not be subject to distress or the landlord's remedy for rent nor to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such apparatus has upon it a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

Dividends
dependent
on price
charged.

51. The standard prices to be charged by the Company for gas supplied by them shall be three shillings and sixpence per thousand cubic feet in the urban district of Hitchin and such part of the parish of Walsworth as is within the limits of this Act and four shillings in the remaining portion of the limits of this Act :

Provided that the Company may increase or reduce the price charged by them for gas above or below the said standard prices subject to a reduction or increase in the standard rate of dividend on the ordinary share capital or stock as follows :—

In respect of any half year during any part of which the prices charged by the Company for gas shall have been one penny or part of a penny above the standard prices respectively the dividend payable by the Company for that half year shall in respect of each penny or part of a penny by which the standard prices shall have been increased be reduced below the standard rate of dividend by one shilling and threepence on every one hundred pounds of ordinary paid-up capital but such reduction shall be calculated only upon whichever of the said prices shall have been increased to the greater extent :

And in respect of any half year during the whole of which the prices charged by the Company for gas shall have been one penny or more below the standard prices respectively the dividend payable by the Company for that half year may in respect of each penny by which

the standard prices shall have been reduced be increased above the standard rate of dividend by one shilling and threepence on every one hundred pounds of ordinary paid-up capital but such increase shall be calculated only upon whichever of the said prices shall have been reduced to the less extent:

A.D. 1905.
—

Provided that if in any half year the dividend payable shall comprise a fractional amount less than one quarter per centum the Company may defer the payment of such fractional amount until the payment of the next or some succeeding dividend and shall in the discretion of the Company either add such fractional amount to and pay the same with such succeeding dividend accordingly or add the same to the reserve fund.

52.—(1) The Company may charge for any gas supplied through a prepayment meter a not greater charge rate or rent than would be charged for gas supplied to private consumers on the same premises through any other kind of meter or by any other method of supply.

Charges for gas supplied by means of prepayment meters.

(2) The Company shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of the meter and the fittings used therewith. Provided always that the Company shall be entitled to charge one penny for any less quantity than one hundred cubic feet.

The said charge shall include the providing letting fixing repairing and maintenance of the meter and fittings and the cost of collection and other costs incurred by the Company in connection with the meter and fittings.

(3) The maximum charge for the hire of a prepayment meter without fittings shall be at the rate of ten per centum per annum on the cost of the meter to the Company and the provisions of this Act applicable to ordinary meters shall so far as applicable apply to prepayment meters.

(4) For the purposes of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

A.D. 1905.

Interim
dividends.

53. The directors of the Company may in any year without calling a meeting of shareholders for the purpose declare an interim half-yearly dividend out of the then ascertained profits of the Company Provided that the amount of any interim half-yearly dividend so declared shall not exceed in any one half year one half of the amount of the standard rate of dividend.

Closing of
transfer
books pre-
vious to de-
claring in-
terim divi-
dend.

54. The directors may close the register of transfers for a period not exceeding fourteen days previous to the declaration of any interim dividend and they may fix a day for closing the same of which seven days' notice shall be given by advertisement in some newspaper published or circulating in the district within which the Company's principal place of business is situate and any transfer made during the time when the transfer books are so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend.

Pressure of
gas.

55. All gas supplied by the Company to any consumer of gas shall be supplied at such pressure as to balance a column of water from midnight to sunset not less than six-tenths of an inch and from sunset to midnight not less than eight-tenths of an inch in height at the main as near as may be to the junction therewith of the service pipe supplying such consumer and any gas examiner appointed under the Gasworks Clauses Act 1871 may subject to the terms of his appointment test the pressure at which the gas is supplied and may for that purpose open any street road passage or place vested in or under the control of any local or road authority and the provisions of the Gasworks Clauses Act 1871 with reference to testing of gas and to penalties shall mutatis mutandis apply to such testing of pressure and two hours' previous notice shall be given to the Company of the time and place at which such testing shall be conducted.

Quality of
gas.

56. The prescribed number of candles shall be not less than fifteen.

Testing
place.

57. Within six months from the passing of this Act a testing place shall be provided upon some part of the works or lands of the Company or within two hundred yards from any part thereof.

Burner.

58. The prescribed burner shall be Sugg's No. 1 London argand burner with a six-inch by one-and-three-quarter-inch glass chimney and if at any time the gas flame rises above the

top of the glass a six-inch by two-inch chimney shall be used or such other burner as shall for the time being be approved by the Board of Trade. A.D. 1905.

59. The Company may upon the application of the owner or occupier of any premises abutting on or being erected in any street or road laid out or made but not dedicated to public use supply such premises with gas and may lay and from time to time take up alter relay or renew in across or along such street or road such pipes as may be requisite or proper for the furnishing such supply and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof. Power to lay pipes in streets not dedicated to public use.

60. The Company may take hold and use within the limits of this Act patent rights or licences or authorities (not being exclusive) under any letters patent for the use of any invention relative to the manufacture conversion utilisation or distribution of gas and of such materials and residual products as aforesaid. Power to hold licences under letters patent.

61. Twenty-four hours' notice in writing shall be given to the Company by every gas consumer before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur Notice of the effect of this enactment shall be endorsed on every demand note for gas rent payable to the Company. Gas consumers to give notice to Company before removing.

62. If a person requiring a supply of gas from the Company has previously quitted premises at which gas was supplied to him by the Company without paying to them all gas and meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same. Power to refuse supply to persons in debt for other property.

63. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company. Notice to discontinue supply of gas.

A.D. 1905.

Period of
error in de-
fective
meters.

64. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Company.

Discounts.

65. The Company may if they think fit allow discounts or rebates to consumers of gas in consideration of prompt payment of gas rents not exceeding in any case ten per centum and in addition thereto or irrespective thereof they may if they think fit allow discounts or rebates to large consumers not exceeding in any case fifteen per centum. Provided that all discounts or rebates shall be of equal amount under like circumstances to all consumers. Provided also that notice of the effect of this enactment shall be endorsed on every demand note for gas rent.

Dwelling-
houses for
workmen.

66. The Company may upon any lands for the time being belonging or leased to them erect fit up maintain and let houses cottages and buildings for the officers and servants employed by the Company for the purposes of their undertaking.

As to speci-
fication of in-
ternal fittings
and construc-
tion and
placing of
pipes &c. be-
tween mains
and con-
sumer's pre-
mises.

67. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

- (1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer either in the first instance or on the occasion of any renewal between the Company's mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises:
- (2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time:
- (3) The specification shall be published twice in some newspaper or once in each of two newspapers circulating within the limits of this Act and a copy thereof shall be kept exhibited in the office of the Company:

A.D. 1905.
—

(4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building:

(5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company. Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with:

(6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

68. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and in default of his so using or keeping such anti-fluctuator in proper repair the Company may cease to supply gas to such consumer. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

Anti-fluctua-
tors for gas
engines.

A.D. 1905.

No penalty
in case of
unavoidable
cause.

69. No penalty shall be incurred by the Company for neglect or refusal to give a supply of gas in accordance with the provisions of this Act or for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which the court having cognizance of the case are of opinion that such neglect refusal insufficiency defect or excess was caused by circumstances beyond the control of the Company. Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company.

Company
may contract
with local
authority &c.
for supply in
bulk.

70. The Company may contract with any local authority company or persons beyond the Company's limits of supply (but only with the consent in writing of the local authority of the district within which the supply is to be given and of any company or person supplying gas under parliamentary powers in that district) for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as shall be agreed upon.

Company not
to oppose
application
by Hitchin
Urban Dis-
trict Council
to purchase.

71.—(1) If the Hitchin Urban District Council (in this section called "the council") shall introduce a Bill into Parliament and bona fide promote the same in the next session of Parliament for an Act to empower them to purchase the undertaking of the Company the Company shall not oppose such Bill except in so far as they may deem necessary in order to secure the insertion therein of provisions to protect their interests with respect to such purchase and for that purpose the Company shall be at liberty to petition either or both Houses of Parliament and to appear on such petition by counsel agents and witnesses if they think fit.

(2) If the council obtain an Act authorising such purchase they shall give notice of their intention to purchase within three months after the passing of such Act and thereupon the Company shall sell and transfer and the council shall purchase the undertaking of the Company subject to all their then existing debentures mortgages obligations and liabilities.

(3) Any such sale and purchase shall be for such price or consideration and on and subject to such terms and conditions as may be agreed upon between the Company and the council or as failing such agreement shall be determined by arbitration in accordance with the provisions of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than

by agreement and in the construction of the said provisions the expression "the promoters of the undertaking" shall mean the council and the expression "lands" shall mean the undertaking of the Company and in the event of such arbitration taking place the arbitrators or umpire shall in settling the amount to be paid by the council to the Company allow ten per centum as compensation for compulsory purchase Provided that the arbitrators or umpire shall not in settling such amount have regard to the fact that the Company have obtained this Act.

A.D. 1905.

(4) In addition to the sum to be paid by the council to the Company under the foregoing provisions of this section the council shall pay to the Company the actual costs charges and expenses of obtaining this Act and the costs charges and expenses incurred by them of and incident to the winding up of the Company.

(5) The council shall also pay compensation to any officers and servants in the regular employment of the Company who shall not be retained by the council in the same or similar office or employment and at the salary and on the terms and conditions in at and on which they respectively were employed by the Company at the passing of the Act authorising the purchase of the undertaking of the Company in respect of any loss of office or diminution of salary or income by reason of the transfer of the undertaking of the Company to the council the amount of such compensation in default of agreement to be determined by arbitration.

(6) The Company shall not except with the consent of the council raise any capital in pursuance of this Act prior to the twentieth day of November one thousand nine hundred and five and if the council shall give notice of such Bill as aforesaid in October or November one thousand nine hundred and five the Company shall not raise any capital in pursuance of this Act during the promotion of such Bill save what is necessary for completing and carrying on the undertaking and to satisfy existing obligations.

(7) The expression "the undertaking of the Company" includes all the gasworks engines mains pipes and machinery lands and buildings plant fixed and movable and all other the real and personal property assets and effects of whatever nature and all the rights powers and privileges vested in or belonging to or had or enjoyed by the Company at the date of the transfer of the undertaking of the Company to the council except cash

A.D. 1905. in hand or with their bankers book debts received or due on credit or revenue account and except any profits then to be divided and except the books and papers relating exclusively to the shareholders in and the constitution of the Company and also except movable stock in trade gas coal and other stores which shall be taken over by valuation at the date of the transfer.

For protec-
tion of Hert-
fordshire
County
Council.

72. Notwithstanding anything contained in this Act the following provisions for the protection of the county council of the administrative county of Hertford (in this section referred to as "the county council") shall unless otherwise agreed between the Company and the county council have effect:—

- (1) The Company shall not permit any trench made by them in any main road street bridge or other highway for the time being maintainable by the county council to be open for more than fifty yards in length at any place where only one cart can pass at the side of such trench or for more than one hundred yards in length where only two carts can pass at the same time:
- (2) Where any pipe conduit or other work of the Company is to be laid or constructed beneath the surface of any main road street bridge or other highway for the time being maintainable by the county council or to the maintenance of which the county council shall for the time being contribute the same shall if possible be laid or constructed at such a depth that not less than two feet shall intervene between the surface of such road street bridge or highway and the upper surface of any such pipe conduit or work Any difference as to the possibility of so laying or constructing any such pipe conduit or work shall be determined by arbitration as hereinafter in this section provided:
- (3) If the county council shall for the purpose of altering any such road street bridge or other highway as aforesaid or rebuilding or altering any such bridge at any time require the position or level of any pipe conduit or other work of the Company laid in under through or by the side of any such road street bridge or highway as aforesaid to be altered the Company shall at their own expense on receiving notice in writing under the hand of the clerk of the county council so to do alter the same as reasonably required by such

notice and under the superintendence of the officer of the county council and any additional expense in relation to the alteration or rebuilding of any such bridge as aforesaid or the approaches thereto to which the county council may be put by reason of necessity for providing for any pipe conduit or other work of the Company and all reasonable expense of any superintendence as aforesaid shall be paid by the Company to the county council. Any difference as to the reasonableness of any requirement contained in any such notice or as to the amount of any sum to be so paid by the Company to the county council shall be determined by arbitration as hereinafter in this section provided:

- (4) If the Company in the execution of any works in or affecting any such road street bridge or other highway as aforesaid shall cause any damage injury or disturbance to such road street bridge or other highway and shall neglect or refuse to make good all such damage injury or disturbance in accordance with the provisions of the Gasworks Clauses Act 1847 then it shall be lawful for the county council after reasonable notice to the Company of the alleged neglect or refusal and of the works which they propose to execute to do all works necessary for making good all such damage injury or disturbance and the Company shall repay to the county council all costs charges and expenses which the county council shall reasonably and properly incur in carrying out such works including all reasonable expense of superintendence:
- (5) The county council shall not be liable to the Company for any damage which may be done to any of the pipes conduits or other works of the Company by the reasonable use upon any such road street bridge or highway as aforesaid of any steam roller or other engine and provided the weight of any steam roller or other engine does not exceed fifteen tons:
- (6) Any difference by this section required to be determined by arbitration shall be determined by an engineer to be appointed (in default of an agreement between the parties) by the President of the Institution of Civil Engineers on the application of either party.

A.D. 1905.

For protec-
tion of Great
Northern
Railway
Company.

73. The following provisions for the protection of the Great Northern Railway Company (hereinafter in this section called "the Great Northern Company") shall unless with the previous consent of the Great Northern Company in writing under their common seal apply and have effect:—

- (1) All mains and pipes laid by the Company under the powers of this Act over any tunnel of or over or under any bridge over or under any railway of the Great Northern Company shall be carried over or under the same in such a way as not to interfere with the structure of any such tunnel or bridge and all other mains and pipes laid by the Company under the powers of this Act which shall cross any railway of the Great Northern Company shall be carried under the same in a culvert or culverts of sufficient dimensions to admit of such mains and pipes being relaid or repaired without interference with the railway:
- (2) In laying and maintaining any mains pipes culverts or other works over upon across or under any railway or property of the Great Northern Company the Company shall execute and maintain their works under the direction and superintendence and to the reasonable satisfaction of the engineer of the Great Northern Company and in accordance with plans drawings and specifications previously submitted to and reasonably approved by him and shall pay and make good to the Great Northern Company all loss damages and expenses which the Great Northern Company shall sustain or be put to by reason or in consequence of the laying or maintenance of the said mains pipes culverts or other works:
- (3) Any difference arising between the Company and the Great Northern Company under this section shall be determined by an engineer to be appointed failing agreement by the Board of Trade on the application of either party after notice to the other.

Copy of Act
to be regis-
tered.

74. The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company

shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recoverable summarily. A.D. 1905.

There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies Act 1862 on registration of any document other than a memorandum of association.

75. All the costs charges and expenses of incident and preliminary to the preparing and applying for obtaining and passing of this Act and otherwise in relation thereto shall be paid by the Company. Costs of Act.

A.D. 1905. The SCHEDULE referred to in the foregoing Act.

No. 1 The freehold lands in the parish of Hitchin in the county of Hertford belonging to or reputed to belong to and now in the occupation of the limited company containing 2 A. 2 R. 20 P. or thereabouts and on part whereof the gasworks of the limited company are situate being at or near a place now or heretofore called or known as Walsworth Holmes in the said parish of Hitchin aforesaid and bounded on the north south and east by property belonging to William Ransom and on the west by land belonging to the Great Northern Railway Company.

No. 2 The leasehold lands situate at or near Starlings Bridge in the parish of Hitchin in the county of Hertford now in the occupation of the limited company or their under tenants and held by the limited company for terms of years expiring on the twenty-fifth day of March one thousand nine hundred and thirty-three containing 0 A. 3 R. 3 P. or thereabouts upon which are situate a governor station a gasholder station the secretary's office and the board room of the limited company and a cottage in the occupation of Charles Worbey and bounded on the south-east by the River Hiz on the north-east by the high road called or known as Nightingale Road and on the west and south-west by land belonging to the trustees of estates in the parish of Hitchin devised by the will of John Skynner to charitable uses and now in the occupation of Charles Green.

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